

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Nathaniel Flack	Team: Squad #03	CCRB Case #: 201704193	☐ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☒ O.L.	☐ Injury
Incident Date(s) Friday, 05/26/2017 2:14 PM	Location of Incident: West 37th Street between 8th Avenue and 9th Avenue	18 Mo. SOL 11/26/2018	Precinct: 14		
Date/Time CV Reported Fri, 05/26/2017 2:44 PM	CV Reported At: CCRB	How CV Reported: Phone	Date/Time Received at CCRB Fri, 05/26/2017 2:44 PM		

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Vincent Calvanese	25702	943040	MTS PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Frank Menna	13911	952006	MTS PCT
2. POM Gavin Murphy	07353	924229	MTS PCT

Officer(s)	Allegation	Investigator Recommendation
A . POM Vincent Calvanese	Abuse: Police Officer Vincent Calvanese stopped the vehicle in which § 87(2)(b) was an occupant.	A . Exonerated
B . POM Vincent Calvanese	Off. Language: Police Officer Vincent Calvanese made remarks to § 87(2)(b) based upon race.	B . Unsubstantiated

Case Summary

§ 87(2)(b) filed this complaint with the CCRB on May 26, 2017 via telephone.

On May 26, 2017 at approximately 2:14 pm, PO Vincent Calvanese of the 14th Precinct stopped § 87(2)(b) for using a mobile device while driving on 37th Street near 9th Avenue in Manhattan (**Allegation A**). § 87(2)(b) verbally protested the stop while providing his information, and PO Calvanese allegedly said, “I need to give guys like you a ticket,” or, “Your kind deserves a ticket” (**Allegation B**). § 87(2)(b) received a summons and was allowed to leave.

No video footage was identified for this incident.

Mediation, Civil, and Criminal Histories

- § 87(2)(b) declined mediation § 87(2)(b)
- As of July 12, 2017, no Notice of Claim has been filed regarding this incident.
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Civilian and Officer CCRB Histories

- § 87(2)(b) previously filed CCRB complaint § 87(2)(b)
- PO Calvanese has been the subject of eight allegations in three prior CCRB complaints against him. In 200916796, three unspecified allegations were closed as mediation attempted. In 201001014, allegations of a vehicle stop and retaliatory summons were exonerated, while a discourtesy allegation was unsubstantiated. In 201214152, allegations of force using a car door and discourtesy were withdrawn.

Potential Issues

- § 87(2)(b) and PO Calvanese were consistent that PO Calvanese was the only officer to approach § 87(2)(b) s. § 87(2)(g)

Findings and Recommendations

Allegation A – Abuse of Authority: Police Officer Vincent Calvanese stopped the vehicle in which § 87(2)(b) was an occupant.

§ 87(2)(b) said in his interview (Board Review 01) that he drove past PO Calvanese on 37th Street while listening to music from his phone over the Bluetooth system in his vehicle. Immediately after noticing PO Calvanese, § 87(2)(b) looked down at the screen of his phone, which was on the center console, to check which musical artist was playing, but he denied touching the screen of the phone or doing anything else with his hands while driving past PO Calvanese. As § 87(2)(b) approached the stop light further down the same block, PO

Calvanese approached § 87(2)(b)'s vehicle and told him to pull over. § 87(2)(b)
(g)
In his intake statement, he mentioned that he had a book with him during the incident.

PO Calvanese said in his interview (Board Review 02) that while standing on 37th Street, he saw § 87(2)(b) operating a black mobile device with his fingers, through the front windshield of § 87(2)(b)'s vehicle. PO Calvanese walked after § 87(2)(b)'s vehicle and told him to pull over. After being stopped, § 87(2)(b) said that he had been holding a book rather than a phone, which PO Calvanese believed to be false because the device he had seen him operating was black, while the book § 87(2)(b) had was orange.

§ 87(2)(b) received summons number § 87(2)(b) (Board Review 03) for a violation of New York Vehicle and Traffic Law Section 1225(d), driving while operating a mobile device. The summons notes that § 87(2)(b) said during the incident that he had been holding a book rather than a phone, and that the book was orange while the phone was black.

An officer may stop a vehicle when he possesses a reasonable suspicion that an occupant has committed a crime or violation. People v. Taylor, 31 A.D.3d 1141; (Board Review 04). It is a violation to operate a motor vehicle while operating a portable electronic device, which the statute defines as holding the device while accessing electronic data. NY VAT 1225(d) (Board Review 05).

§ 87(2)(g)
Therefore, it is recommended that **Allegation A** be closed as **exonerated**.

Allegation B – Offensive Language: Police Officer Vincent Calvanese made remarks to § 87(2)(b) based upon race.

In his interview, § 87(2)(b) said that after providing his license to PO Calvanese, he accused PO Calvanese of writing him a ticket in order to fulfill his “quota,” to which PO Calvanese responded, “I need to give guys like you a ticket.” § 87(2)(b) said, “Guys like me, what does that mean?” PO Calvanese only nodded his head and walked to the back of the car to write the summons. § 87(2)(b) believed the remark referred to the fact that he is Hispanic.

In his telephone statement, § 87(2)(b) said that PO Calvanese told him, “Your type deserves a ticket,” while in his intake statement, he said that PO Calvanese told him, “Your kind deserves a ticket.”

PO Calvanese denied saying to § 87(2)(b) “I need to give guys like you a ticket,” or, “Your kind deserves a ticket.” He did not hear any other officer make those remarks. PO Calvanese did not recall § 87(2)(b) complaining that these remarks had been made. PO

Calvanese denied saying anything about “your type” or “guys like you” to § 87(2)(b) or making any remarks based on race.

§ 87(2)(g)

it is recommended that **Allegation B** be closed as **unsubstantiated**.

Squad: 3

Investigator:	_____	_____	_____
	Signature	Print	Date

Squad Leader:	_____	_____	_____
	Title/Signature	Print	Date

Reviewer:	_____	_____	_____
	Title/Signature	Print	Date